

any felon, murderer, or accessary, or give an untrue verdict against the King, upon the tryal of any traverse, recognizance, or forfeiture, contrary to good and pregnant evidence ministred to them by persons sworn before the Kings Justiciar. That then such jurors should be bound to appear before the Council of the Marches, there to abide such fine or ransome for their offence, as that Court should think fit.

[151] If jurors might have been fined before, by the law, for going against their evidence in matters criminal, there had been no cause for making this statute against jurors, for so doing in Wales only.

Objections out of the Ancient and Modern Books.

1. A juror kept his fellows a day and night, without any reason or assenting, and therefore awarded to the Fleet.

This book rightly understood is law, that he staid his fellows a day and a night, without any reason or assenting, may be understood, that he would not in that time intend the verdict all, more if he had been absent from his fellows, but wilfully not find for either side: in this sense it was a misdemeanor against his oath, for his oath was truly to try the issue, which he could never do, that resolv'd not to confer with his fellows.

And in this sense it is the same with the case 34 E. 3, where twelve being sworn, and put together to treat of their verdict, one secretly withdrew himself, and went away, for which he was justly fined and imprison'd; and it differs not to withdraw from a mans duty, by departing from his fellows, and to withdraw from it, though he stay in the same room, and so is that book to be understood.

But if a man differ in judgment from his fellows for a day and a night, though his dissent may not be as reasonable as the opinion of the rest that agree, yet if his judgment be not satisfied, one disagreeing can be no more criminal than four or five disagreeing with the rest.

2. A juror would not agree with his fellows for two dayes, and being demanded by the Judges, if he would agree; said, he would first die in prison; whereupon he was committed, and the verdict of the eleven taken; but upon better advice the verdict of the eleven was quasht, and the juror discharg'd without fine, and the justices said, the way was to carry them in carts, until they agreed, and not by fining them; and as the Judges err'd in taking the verdict of eleven, so they did in imprisoning the twelfth; and this case makes strongly that the juror was not to be fined, who disagreed in judgment only.

[152] Much of the office of jurors, in order to their verdict, is ministerial, as not withdrawing from their fellows, after they are sworn, not withdrawing after challenge, and being tryed in before they take their oath; not receiving from either side evidence after their oath not given in Court, not eating and drinking before their verdict, refusing to give a verdict, and the like; wherein if they transgress, they are finable; but the verdict it self, when given, is not an act ministerial, but judicial, and according to the best of their judgment, for which they are not finable, nor to be punisht, but by attainnt.

3. The case of 7 R. 2, title Coronæ, Fitz. 108, was cite d, where upon acquittal of a common thief, the Judge said, the jury ought to be bound to his good behaviour, during his life: but saith the book, quere per quel ley, but that was only gratis dictum by the Judge, for no such thing was done, as binding them.

4. *Bradshaw and Salmons case* was urg'd, where a jury had given excessive damages upon a tryal in an action of covenant, and the Court of Star-Chamber gave damages to the complainant almost as high as the jury had given upon the tryal: but the jury, who gave the damages, were not question'd: though, saith the book, they might have been, because they receiv'd briefs from the plaintiff, for whom they gave damages, which was a misdemeanor; but the express book is, that the jury could not be punisht by information for the excessive damages, but only by attainnt, therefore not for their false verdict without other misdemeanor; which answers some other cases alledg'd.

Nor can any man shew (though it was said) that a jury was ever punisht upon an information, either in law, or in the Star-Chamber, where the charge was only for finding against their evidence, or giving an untrue verdict, unless imbracery, subordination, or the like, were joyn'd.